

HOUSE No. 1046

The Commonwealth of Massachusetts

PRESENTED BY:

Greg Schwartz and David M. Rogers

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to eliminate combined sewer overflows in Massachusetts waterways.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Greg Schwartz</i>	<i>12th Middlesex</i>	<i>1/16/2025</i>
<i>David M. Rogers</i>	<i>24th Middlesex</i>	<i>1/16/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>3/4/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>3/14/2025</i>
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>9/30/2025</i>
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>5/27/2025</i>
<i>Carmin Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>3/4/2025</i>
<i>Kristin E. Kassner</i>	<i>2nd Essex</i>	<i>6/17/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>2/17/2025</i>
<i>Amy Mah Sangiolo</i>	<i>11th Middlesex</i>	<i>5/6/2025</i>

HOUSE No. 1046

By Representatives Schwartz of Newton and Rogers of Cambridge, a petition (accompanied by bill, House, No. 1046) of Greg Schwartz, David M. Rogers and others for legislation to eliminate combined sewer overflows in waterways. Environment and Natural Resources.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to eliminate combined sewer overflows in Massachusetts waterways.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. As used in this Act, the following terms shall have the following meanings:

2 "Combined Sewer System" is a wastewater collection system of a municipality or of a
3 Publicly Owned Treatment Works that conveys sanitary wastewater (domestic, commercial, and
4 industrial wastewaters) and stormwater through a single-pipe system to a treatment plant.

5 "Combined Sewer Overflow" is a discharge or release from a Combined Sewer System
6 directly or indirectly to a water of the commonwealth at a point prior to a Publicly Owned
7 Treatment Works Treatment Plant.

8 "EEA" is the Executive Office of Energy and Environmental Affairs.

9 SECTION 2. Any entity, public or private that owns or operates a combined sewer
10 system that discharges combined sewage into a Massachusetts waterway shall eliminate all
11 combined sewer overflows into Massachusetts waterways by December 31, 2050.

SECTION 3. The EEA shall, within six months of the effective date of this Act, establish interim metrics and benchmarks to monitor progress toward the elimination of combined sewer overflows. These metrics shall include, but not be limited to:

(a) Interim reduction targets for combined sewer system discharges;

(b) Reporting requirements for entities owning or operating combined sewer systems.

SECTION 4. The EEA shall report annually to the General Court and the public on progress toward eliminating combined sewer overflows, including compliance with interim metrics and any barriers to implementation.